

Factory Direct Homes Center, LLC.

• 1211State Road 8 • Auburn, IN 46706 • (260) 308-1457

BUYER 1		BUYER 2		DATE		DEAL #	
MAILING ADDRESS		CITY	STATE	ZIP	PHONE		
DELIVERY ADDRESS		CITY	STATE	ZIP	CELL		
SALESPERSON		EMAIL ADDRESS 1		EMAIL ADDRESS 2			
MAKE & MODEL		YEAR	BEDROOMS	BATHS	DEN		
SERIAL NUMBER		NEW / USED	FLOOR SIZE	HITCH SIZE	APPROX. SQ. FT.		
NOTICE OF CONSTRUCTION & FINAL PAYMENT Buyer authorizes Factory Direct Homes Center to place home into the construction process. By placing home in the construction process, buyer understands that all down payments are non-refundable. Buyer agrees that the final payment must be paid as indicated under Notations & Remarks. X_____ X_____				Retail Price		\$	
				Factory Direct Savings		\$	
				Sub Total 1		\$	
				Addendum "A" Upgrades		\$	
				Sales Event Savings		\$	
				Manager Discount		\$	
				Preferred Payment Discount	3%	\$	
				Multi-Unit Discount	3%	\$	
				Sub Total 2		\$	
NOTICE OF COMPLETION Buyer understands that the approximate completion month for home is: _____ Buyer understands that in the event delivery of the home does not occur to property within 3 days after home is completed at the factory there will be a \$50 per day storage charge that must be paid prior to shipment. In the event there is an extended period of storage time needed buyer authorizes Factory Direct Homes Center to relocate the home to an off-site storage facility. Buyer must insure the home and is responsible for any damage incurred as a result of extended storage. X_____ X_____				Standard Freight Charge		\$	
				Setup Charges		\$	
				Extended Service Agreement		\$	
				Document Fee		\$	
				Taxes		\$	
NOTATIONS & REMARKS Buyer understands that unless otherwise stated, the quoted freight price is estimated for the current date and may not reflect fluctuating fuel charges, Department of Transportation highway construction re-routing, highway patrol escorts, or unique complicated placements based on terrain of delivery site. X_____ X_____				Taxes may change based on final delivery address.			
				Total		\$	
				Down Payment		(-) \$	
				Additional Payment as Agreed		(-) \$	
				Unpaid Balance		\$	
*NO VERBAL PROMISES Changes may only be made via signed change order request and may incur extra charges. X_____ X_____							
Buyer understands that if not paid 7 business days prior to completion, balance must be paid in certified funds. X_____ X_____							
Buyer agrees that the unpaid balance due will be paid in full on or before: X_____ X_____							
Please read your deposit disclosure carefully for termination of Purchase Agreement by any party. All sales are subject to fees for cancellation.							
Unless otherwise stated, if for any reason buyer is not ready to authorize construction of the above home, the amount of this purchase agreement is subject to an increase. If the cost of the home increases between the date of this agreement and the date buyer authorizes construction, buyer agrees that the purchase agreement amount will be adjusted to cover the increases incurred during such time. X_____ X_____							
THIS AGREEMENT ALONG WITH ADDENDUMS CONTAIN THE ENTIRE UNDERSTANDING BETWEEN DELEAR AND BUYER AND NO OTHER REPRESENTATION OR INDUCEMENT, VERBAL OR WRITTEN, HAS BEEN MADE WHICH IS NOT CONTAINED IN THIS PURCHASE AGREEMENT.							

By _____	SIGNER X _____		
Factory Direct Homes Center Representative	BUYER 1		Date
By _____	SIGNER X _____		
Factory Direct Homes Center MANAGER	BUYER 2		Date

[illegible][illegible][illegible][illegible][illegible][illegible]

x_____ x_____ DATE:_____

Appliance and Electrical Work Sheet

Factory Direct Homes Center

Customer Name: _____

Dishwasher door option
Fireplace
Furnace type
Furnace
Dryer hookup type
Dryer hookup
Dryer
Washer
Garbage disposal ready
Microwave above stove
Microwave ready
Garbage disposal
Dishwasher ready
Dishwasher
Ice maker
Ice maker plumbing only
Heat pump ready
Freezer plug
Water heater
Water heater size
Ductwork
Range hookup type
Range hookup
Range type
Range
Appliance color
Refrigerator size
Refrigerator
AC Ready
Gas service on home site to be
Amperage

[illegible]

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____
Factory Direct Homes Center Representative

SIGNED X _____
BUYER 1 Date

By _____
Factory Direct Homes Center MANAGER

SIGNED X _____
BUYER 2 Date

Color Selections

Factory Direct Homes Center, LLC

Customer Name: _____

Interior

Type:
Color:

Interior Trim:

Color:

Interior Door:

Color:

Accent Wall:

Color:
Location:

Tray or Coffers:

Color:

Wainscot:

Color:

Kitchen Sink:

Type:
Color:

Counter Tops:

Kitchen:
Master Bath Color:
Guest Bath:
3rd Bath:
Utility Room:

Ceramic Tile Backsplash:

Kitchen:
Master Bath:
Guest Bath:
3rd Bath:
Utility Room:

Ceramic Edge:

Kitchen:
Master Bath:
Guest Bath:
3rd Bath:
Utility Room:

Mosaic Insert:

Kitchen:
Master Bath:
Guest Bath:
3rd Bath:
Utility Room:

Cabinet:

Type:
Style:
Hardware:
Hardware Color:

Cabinet Color:

Kitchen:
Master Bath:
Guest Bath:
3rd Bath:
Utility Room:

Floor:

Carpet:
Carpet Color:
Linoleum:
Linoleum Color:
Wood Laminate:
Wood Laminate Color:
Ceramic Tile:
Ceramic Tile Color:

Exterior:

Body:
Body Color:
Shingles:
Shingles Color:
Trim Color:
Facia/Soffit Color:
Accent Color:
Shutter Color:
Roof Load:

Decor:

Color:

Notes:

By

Factory Direct Homes Center Representative

SIGNED X

BUYER 1

Date

By

Factory Direct Homes Center Manager

SIGNED X

BUYER 2

Date

FACTORY DIRECT SALE & NON-INSTALLATION DISCLOSURE

Factory Direct Homes Center LLC

It is very important to our company that you are satisfied with the purchase of your new home. It is in that spirit that we would like to explain your responsibilities associated with purchasing your home factory direct. All homes are sold FOB Auburn, IN. This means that you are responsible for paying the freight costs to your destination.

Please read this entire page. If you do not understand all or part of this notice we will explain to you.

Buyer understands that unless otherwise noted within the purchase agreement, buyer is responsible for the following items:

x____ x____ Buyer is responsible for choosing, hiring, arranging, and paying all contractors needed to install home. Contractors must be licensed, bonded and insured to perform all services on your home. Most state laws require a licensed installer. Check with state and local municipality for details.

x____ x____ Buyer is responsible for all aspects of home installation including but not limited to drywall marriage and repairs, interior door adjustment, carpet installation, interior and exterior trim, final cleaning, purchase/ installation of all light bulbs, etc.

x____ x____ In the event the manufactured home is equipped with interior drywall Tape and Texture treatment, minor "hairline" cracks may appear during transportation and placement on property, particularly around window and door areas. Extreme cracking can be caused by maneuvering of home into position on property, sharp turns, rough bumpy terrains, homes craned or use of helicopters to place, maneuvering into excavated hole. Buyer is responsible for repairing/filling these areas and completing the "marriage line close-up" at buyers expense.

x____ x____ Buyer is responsible for all aspects of any home-site/land improvements needed includingbut not limited to septic tanks, well preparation, utility connections, and clearing .

x____ x____ Interior doors are in a square and even position when home is shipped from the factory. If doors get out of square, buyer understands that this is not a warranty item and doors must be adjusted and fixed into place at buyers expense by the home installation contractor or other designated individual.

x____ x____ Homes do not come with an air conditioning unit or hook-up, unless otherwise noted within the purchase agreement. Buyer is responsible to purchase, install, and make required connections.

x____ x____ Evaporative coolers mounted on the ground and ducted in through the floor vent system are not recommended by Factory Direct Homes Center LLC or the manufacturer of the home. Past experience shows that damage will occur in most cases.

x____ x____ Buyer is responsible for all permits/fire codes/flood zone requirements/inspections/occupancy arrangements. Local codes, reflecting the different climates and soil conditions can also be a big determining factor in the type of foundation system that should be installed.

x____ x____ Buyer is responsible to verify that the manufactured home is compatible with site, includingbut not limited to community approval, city, and county zoning requirements if necessary. Buyer must provide transport company with an accessible right of way both physically and legally over which the home can be delivered. If buyer is placing home on a site that is not prepared we recommend that buyer has a compaction test done on the soil to determine compatibility.

x____ x____ This notice is to inform you, our buyer, that the utility service facilities for manufactured home spaces are not standardized and compatibility between a chosen manufactured home space and a manufactured home to be purchased is the buyer's responsibility.

x____ x____ Buyer is responsible for all aspects of home installation, home-site/land mprovements, and obtaining all permits to be in compliance with state of local licensing agencies, if needed, Factory Direct Homes Center LLC reserves the right to request copies of building permits from buyer prior to delivery of home.

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

Initials x _____ Initials x _____

DATE: _____

x____ x____ If local zoning requires a permanent foundation or architectural changes it will be buyers responsibility to notify contractor. If the home requires special blocking or tie-downs because of flood plain restrictions it will be buyers responsibility to make arrangements to pay the contractor. Buyer is responsible for purchasing and obtaining all permits. All utility connections and the installation of home will be buyers responsibility.

x____ x____ Buyer is responsible for ensuring the home will meet state, county, or local jurisdictional codes for fire safety compliance.

Buyer is required to provide all Wildland Urban Interface (WUI) code requirements to your sales representative prior to the production of home. Failure to do so will leave buyer financially responsible for the correction of home to meet all WUI code requirements that are specific to property. If buyer plans to install additions to home (i.e. -garage, add-ons, porches, decks) it will be buyers responsibility to ensure that those structures are in compliance with local WUI codes. Buyer will be financially responsible for any additional fees incurred to manufacture home to the required WUI code standards.

_____ Initials	_____ Initials	☐	Property is in a WUI zone, and I/we have confirmed that the necessary options to meet these codes are listed on the Addendum A.
_____ Initials	_____ Initials	☐	Property is not in a WUI zone, and I/we have confirmed with proper regulatory agency.
_____ Initials	_____ Initials	☐	As of today's date I/we are not sure and will provide necessary information to our sales representative.

x____ x____ Buyer will be supplied a floor plan. Sizes on all prints are nominal and any measurements for installation purposes should be taken from the actual home.

x____ x____ Factory Direct Homes Center LLC is not responsible for the referral or workmanship of contractors hired by Buyer.

In summary let us remind you that you have purchased a manufactured home to be delivered to a prepared land/park space. If the land/park space is not ready you are financially responsible for its preparation.

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____ Factory Direct Homes Center Representative	SIGNED X _____ BUYER 1	_____ Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____ BUYER 2	_____ Date

HOME COMPLETION & DELIVERY INFORMATION

Factory Direct Homes Center LLC

Once you have chosen your new home, a **tentative** delivery date will be scheduled on an **approximated** basis. If the home is special ordered, the order will be placed with the manufacturer and the date and time of delivery will be determined by the **estimated** off-line date from the manufacturer.

Please be advised that certain delays can occur which are beyond everyone's control such as shortage or delays of materials, bad weather, property conditions (wet grounds), improperly prepared delivery site, contractors, manufacturers, lenders, transportation problems (road construction, equipment failure, etc.), Acts of God (Force Majeure), or any cause beyond our control. Should these conditions exist, we cannot guarantee an exact delivery date. We ask that in the event these unavoidable delays occur, that you have suitable backup plans until the delivery can be completed. Factory Direct Homes Center LLC will not be financially responsible for any delays and in some occurrences the buyer may be held financially responsible.

If the home requires special equipment due to a complicated placement, it will be buyers responsibility to ensure that proper equipment and personnel are hired to handle the final placement of the home on the date of delivery. This could include but is not limited to: sharp curves, river beds, ravines, steep inclines, or crossing adjacent property. Buyer understands that we or transport company does not guarantee proper placement if delivery is complicated. If final placement cannot occur on day of delivery the buyer is responsible for finding a secure location for the home and is responsible for the final placement of home.

The quoted freight price does not include unique or complicated placement issues. Unless otherwise noted the price is for standard delivery only. Any additional fees incurred due to complicated placement will be the buyers responsibility.

We take great pride in our outstanding delivery program. We will work with you to assure that the delivery of your home is completed and will do everything within our capabilities to get your home delivered on as timely a basis. We appreciate your patience and understanding.

Once again, THANK YOU for giving us the opportunity to assist you with your upcoming housing change.

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____ Factory Direct Homes Center Representative	SIGNED X _____ BUYER 1	_____ Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____ BUYER 2	_____ Date

Manufacturer's New Home Warranty

Factory Direct Homes Center, LLC

Buyer understands that the home comes with a 12 month Limited manufacturer's warranty provided by the manufacturer, Champion Home Builders. Factory Direct Homes Center, LLC is not responsible for any warranty and/or service work that may be needed on your home.

All Cosmetic items must be reported within 30 days of shipment. These would include items such as scratches, dents, cuts, blemishes, etc. After the home is installed, buyer will perform a walk through inspection and report, in writing, any warranty service items. Written requests for service may be sent to 1211 State Road 8, Auburn, IN 46706. Fax copies are not accepted. For more information regarding the home warranty, please reference the Home Owners Manual provided by Champion Home Builders inside your home owner packet.

Any work that would be covered by the manufacturer warranty and is done without approval from the manufacturer is not subject for reimbursement by manufacturer or Factory Direct Homes Center, LLC who **is a separate entity and does not warranty or service the home.**

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____ Factory Direct Homes Center Representative	SIGNED X _____ BUYER 1	_____ Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____ BUYER 2	_____ Date

Payment Disclosure
Refund and Termination Policy
Factory Direct Homes Center LLC

Down payments and any subsequent payments (collectively "Payments") made toward the Purchase Agreement and provided to Factory Direct Homes Center, LLC as a consideration under the Purchase Agreement are deposited for our customers' protection in compliance with applicable state and federal laws.

Buyer consents to Factory Direct Homes Center LLC using the Payments to complete Factory Direct Homes Center LLC's obligations under the Purchase Agreement, including but not limited to use to pay third-party vendors, administrative, credit card and other costs, and cancellation fees.

All Payments are **NON-REFUNDABLE** to Buyer, except as expressly stated otherwise in the Purchase Agreement. If requested by Buyer, Factory Direct Homes Center LLC may, at its sole discretion, refund to Buyer a portion of the Payments. Any request to terminate the Purchase Agreement and/or refund part of the Payments must be made in writing. Verbal requests to terminate and/or for a refund will not be considered.

Eligible refund requests must be clearly noted on this Purchase Agreement. All refunds, regardless of notation, will be subject to a cancellation fee of two hundred and fifty dollar (\$250) document preparation fee and any applicable processing fees or expenses.

Any refund request will be processed within fourteen (14) business days after the receipt of the written request, validation that payments have cleared the bank, and final authorization by corporate management. Any refund for a portion of the Payments that were made by credit card will only be issued to the original credit card used in the transaction, less any processing fees per the credit card agreement. All other refunds will be issued by check payable to the Buyer under the Purchase Agreement and mailed via U.S. Mail.

Termination by Factory Direct Homes Center LLC may, at its option, terminate the Purchase Agreement at its convenience at any time. Buyer agrees that upon termination for convenience by Factory Direct Homes Center LLC that Buyer's sole remedy shall be the return of any Payments paid toward the Purchase Agreement. Buyer agrees to waive any claims for consequential and other damages, including lost use and lost profits, arising from or related to Factory Direct Homes Center LLC's termination of the Purchase Agreement. A full accounting associated with the refund of the Payments and a refund will be issued within ten (10) business days of the termination.

Acknowledgment

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____ Factory Direct Homes Center Representative	SIGNED X _____	_____ BUYER 1 Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____	_____ BUYER 2 Date

**The U.S. Department of Housing and Urban Development (HUD)
Manufactured Home Disclosure to Consumer
Dispute Resolution Program**

Factory Direct Home Centers, LLC

The U.S. Department of Housing and Urban Development (HUD) Manufactured Home Dispute Resolution Program is available to resolve disputes among manufacturers, retailers, or installers concerning defects in manufactured homes. Many states also have a consumer assistance or dispute resolution program. For additional information about these programs, see section titled "Dispute Resolution Process" and "Additional information-HUD Manufactured Home Dispute Resolution Program" in the Consumer Manual required to be provided to the purchaser. These programs are not warranty programs and do not replace the manufacturer's, or any other person's, warranty program. *HUD states only*

By _____ Factory Direct Homes Center Representative	SIGNED X _____ BUYER 1	_____ Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____ BUYER 2	_____ Date

Recommendation to Employ Only Licensed Contractors & Assumption of Risk and Indemnity Agreement

Factory Direct Homes Center strongly recommends that Buyer only employs contractors that are licensed, bonded and insured to perform all services required on Buyer's new manufactured home. This includes but is not limited to all site work, set-up, and utility connections (i.e., gas, electric, and plumbing).

Buyer hereby ASSUMES FULL RESPONSIBILITY FOR AND RISK OF BODILY INJURY, DEATH OR PROPERTY DAMAGE arising from or out of Buyer's failure to employ properly licensed contractors per Factory Direct Homes Center and Champion Home Builders, and their employees, representative, agents, successors, and assigns against and from any and all claims, demands, actions, losses, liabilities, damages, expenses or costs any of them may incur (including actual attorney's fees and costs of investigation), arising out of our resulting from Buyer's failure to employ properly licensed contractors per Factory Direct Homes Center LLC recommendation.

Buyer 1 acknowledges that he/she has read this Recommendation and Agreement, understands it and signs it voluntarily this _____ day of _____, 20__.

Buyer 2 acknowledges that he/she has read this Recommendation and Agreement, understands it and signs it voluntarily this _____ day of _____, 20__.

By _____ Factory Direct Homes Center Representative	SIGNED X _____ BUYER 1	_____ Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____ BUYER 2	_____ Date

Arbitration Clause

Factory Direct Homes Center, LLC

Buyer may seek assistance from HUD Dispute Resolution Program to resolve issues associated with this Agreement. In addition to this option, the parties agree that the dispute resolution mechanism available for any dispute arising out of this Agreement shall be arbitration before a single arbitrator, in accordance with the then current Rules of the American Arbitration Association or any successor organization (the "AAA"). The arbitration proceeding shall be initiated and the hearing shall take place in DeKalb County, Indiana. The party desiring to initiate the arbitration process shall give written notice to that effect and to the other party and shall, in such written notice, include a brief statement of its claims. Within fifteen (15) business days of the notice of intent to arbitrate, the parties shall meet for the purpose of attempting to jointly select a single AAA approved arbitrator to serve in the matter. If they are unable to agree on the designation of the arbitrator, either party may apply to the AAA for the appointment of a single arbitrator in accordance with the rules of the AAA then in effect. Any arbitrator selected by the parties or by the AAA to resolve a dispute arising out of this Agreement shall be a member of the State Bar of Indiana and shall have at least ten (10) years' experience practicing business law in the State of Indiana. The arbitrator may, in the exercise of their discretion, at the written request of a party in any dispute, consolidate any multiple party claims that are substantially identical and all claims arising out of a single transaction. The decision of the arbitrator shall be final and binding upon, and non-appealable by, the parties and any judgment may be had on the decision and award so rendered in any court of competent jurisdiction. The arbitrator shall have the right to determine their own jurisdiction, and shall provide the parties with a reasonable opportunity for discovery as the arbitrator deems appropriate. The costs of arbitration and the arbitrator's fee shall be split equally between the parties, but arbitrator shall have the power to award the prevailing party fees and costs incurred in connection with the arbitration proceeding, including the fees of the arbitrator, the AAA filing fees, the prevailing party's reasonable attorneys' fees and costs, expert witness fees, other costs as determined by the arbitrator, and any other relief that a judge sitting in the Superior Court of the State of Indiana could lawfully grant.

Each party to this Agreement hereby expressly waives any right to a jury trial with respect to any matter subject to arbitration hereunder. The parties intend that the Federal Arbitration Act, 9 U.S.C. § 1, shall apply to this Agreement.

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____	SIGNED X _____	_____
Factory Direct Homes Center Representative	BUYER 1	Date
By _____	SIGNED X _____	_____
Factory Direct Homes Center Manager	BUYER 2	Date

TIRES AND AXLES BILL OF SALE RECYCLE INFORMATION

Factory Direct Homes Center

I agree to convey to Factory Direct Homes Center, tires and axles on home Serial # _____
for the amount \$1.00. I understand that these will be removed from the home at time of
installation, reconditioned for reuse, and recycled back to the manufacturer.

In the event buyer is installing home then tires and axles must be removed and set aside the home
for pick up. Homeowner must contact Factory Direct Homes Center for notification of pick up.

Daytime Phone Number: _____

Evening Phone Number: _____

Cell Phone Number: _____

Email Address: _____

By _____ Factory Direct Homes Center Representative	SIGNED X _____ BUYER 1	_____ Date
By _____ Factory Direct Homes Center Manager	SIGNED X _____ BUYER 2	_____ Date

Shipping Directions & Map

Factory Direct Homes Center

Fill in directions to the property which your home will be placed. Also enter contact information for freight company to contact you or your representative in case there is a problem finding the property:

Shipping Address

Contact Information

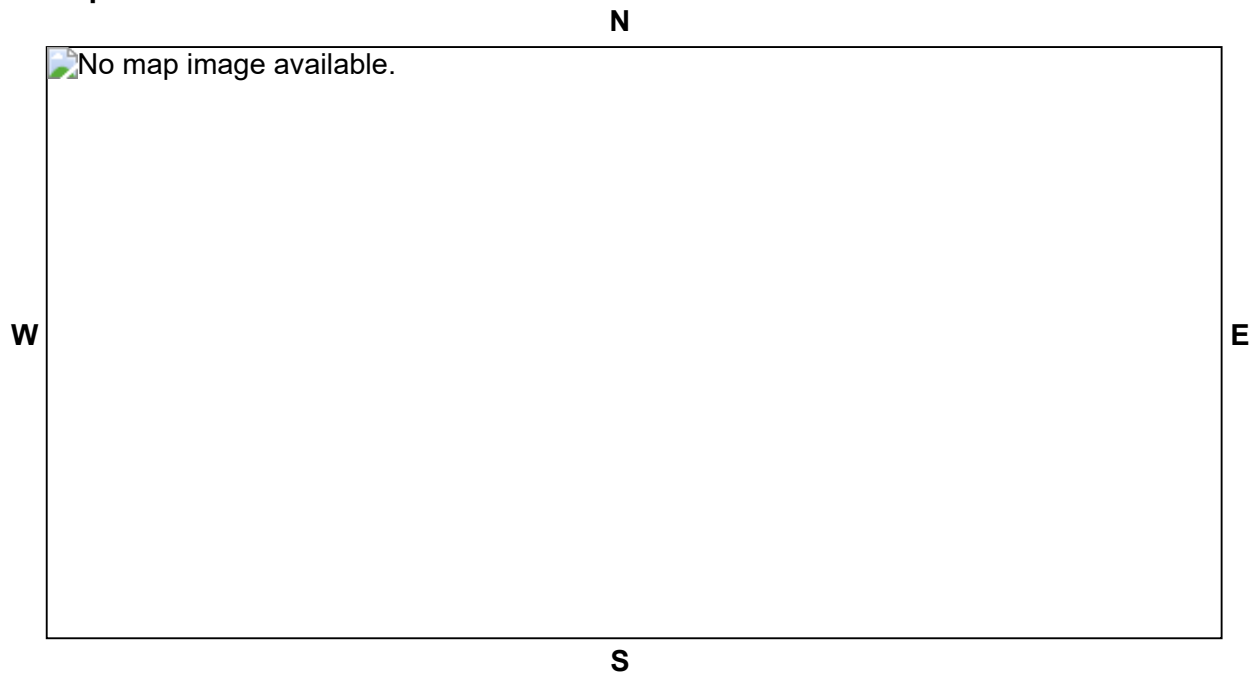
Name:

Daytime Phone:

Evening Phone:

Mobile Phone:

Map



Directions

By	SIGNED X	BUYER 1	
Factory Direct Homes Center Representative			Date
By	SIGNED X	BUYER 2	
Factory Direct Homes Center Manager			Date

Title Information

Factory Direct Homes Center

Please note: All owners must sign the application for title. (Even if joint tenancy was previously established in another jurisdiction.) If titling in a company name, you must provide an EIN #.

____ Copy of Drivers License Attached

Name _____

Drivers License # _____ State _____

Date of Birth _____ EIN # _____

____ **OR** or ____ **AND** or ____ **AND/OR** (check one, if applicable)

Name _____

Drivers License # _____ State _____

Date of Birth _____ EIN # _____

____ **OR** or ____ **AND** or ____ **AND/OR** (check one, if applicable)

Name _____

Drivers License # _____ State _____

Date of Birth _____ EIN # _____

Lien Holder	_____
Address	_____
Amount of Lien	_____
Date of Lien	_____

Mail MSO/Title to: _____

City _____ State _____ Zip _____

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____	SIGNED X _____	_____
Factory Direct Homes Center Representative	BUYER 1	Date
By _____	SIGNED X _____	_____
Factory Direct Homes Center Manager	BUYER 2	Date

Verification of Manufactured (HUD) Home Purchase

Factory Direct Homes Center

Buyer understands that they are purchasing a HUD Manufactured Home. This home is NOT a **Modular** Home. Buyer understands that the HUD Manufactured Home they are purchasing is built to HUD Federal Code.

By signing below I/we acknowledge this notice and accept the responsibilities associated with my/our purchase.

By _____	SIGNED X _____	_____
Factory Direct Homes Center Representative	BUYER 1	Date
By _____	SIGNED X _____	_____
Factory Direct Homes Center Manager	BUYER 2	Date